

(S E R V E D)
(DECEMBER 22, 1994)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

46 CFR PARTS 514, 580 AND 581

[DOCKET NO. 93-22]

**COLOADING PRACTICES BY NON-VESSEL-OPERATING
COMMON CARRIERS; SHIPPER AFFILIATE ACCESS
TO SERVICE CONTRACTS**

[DOCKET NO. 94-26]

**INQUIRY INTO STATUTORY BASIS FOR COLOADING PRACTICES
AND POSSIBLE SECTION 16 EXEMPTION FOR COLOADING**

AGENCY: Federal Maritime Commission.

ACTION: Notice of Inquiry; Extension of Time.

SUMMARY: The Commission by notice published November 9, 1994, initiated an inquiry in these proceedings to explore whether existing coloadng practices are consistent with statutory requirements, and, if not, whether an exemption proceeding should be initiated (59 FR 55826). Upon request of interested parties, the Commission has determined to enlarge the time for comment on the inquiry.

DATES: Comments due on or before January 23, 1995.

93-22/94-26

4 Section 3472.1-2 is amended by revising paragraphs (e)(1)(i) and (e)(6)(ii)(D) and (E) to read as follows:

§ 3472.1-2 Special leasing qualifications.

(e)(1)(i) On or after December 31, 1986, no lease shall be issued and no existing lease shall be transferred to any entity that holds and has held for 10 years any lease from which the entity is not producing coal in commercial quantities, except as authorized under the advance royalty or suspension provisions of part 348G of this title, or paragraph (e)(4), (5), or (6) of this section

• • • • •

(ii) • • •

(D) Producing, or has produced in satisfaction of the continued operation requirements of part 3480 of this title, for leases that began their first production of coal-

(1) On or after August 4, 1976, and

(2) After becoming subject to the diligence provisions of part 3480 of this title;

(E) Contained in an approved logical mining unit that is—

(1) Producing, or has produced in satisfaction of the continued operation requirements of part 3480 of this title; and

(2) In compliance with the logical mining unit stipulations of approval under § 3487.1(e) and (f) of this title; or

• • • • •

PART 3480—COAL EXPLORATION AND MINING OPERATIONS RULES

5. The authority citation for part 3480 is revised to read as follows:

Authority: 30 U.S.C. 181 et seq.

Subpart 3480—Coal Exploration and Mining Operations Rules: General

6. Section 3480.0-5 is amended by redesignating paragraphs (a)(21) through (a)(36) as paragraphs (a)(22) through (a)(37), respectively, and adding paragraph (a)(21) to read as follows:

§ 3480.0-5 Definitions.

(a) • • •

(21) *Logical mining unit (LMU) recoverable coal reserves exhaustion* period means the period of time that begins upon the approval of the LMU resource recovery and protection plan and ends when all the LMU recoverable coal reserves have been mined out. This period must not be more than 40 years.

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SUBPART 3483—DILIGENCE REQUIREMENTS

7. Section 3483.3 is amended by revising the heading and paragraphs (a) and (a)(1) to read as follows.

§ 3483.3 Suspension of continued operation or operations and production.

(a) Applications for suspensions of continued operation must be filed in triplicate in the office of the authorized officer. The authorized officer, if he determines an application to be in the public interest, may approve the application and terminate suspensions that have been or may be granted.

(1) The authorized officer must suspend the requirement for continued operation by the period of time he or she determines that strikes, the elements, or casualties not attributable to the operator/lessee have interrupted operations under the Federal coal lease or LMU.

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SUBPART 3487—LOGICAL MINING UNIT

8. Sect& 3487.1 is amended by redesignating paragraphs (f)(2) through (f)(5) as paragraphs (f)(3) through (f)(6), respectively, by redesignating paragraphs (g) and (h) as paragraphs (h) and (i), respectively, by revising paragraph (e)(6), by adding new paragraphs (f)(2), (f)(7), and (g), and by revising newly designated paragraph (h)(4) to read as follows:

§ 3497.1 Logical mining units.

• • • • •

(e) • • •

(6) Beginning the LMU recoverable coal reserves exhaustion period on the date the LMU resource recovery and protection plan is approved, and requiring that the operator/lessee mine all LMU recoverable coal reserves within 40 years of that date.

• • • • •

(f) *Criteria for approving the establishment of an LMU.* The authorized officer may approve an LMU if it meets the following criteria:

• • • • •

(2) The application demonstrates that mining operations OR the LMU will achieve maximum economic recovery of Federal recoverable coal reserves within the LMU in an efficient, economical, and orderly manner with due regard to conservation of coal reserves and other resources. A single operation may include a series of excavations. In determining whether the proposed LMU meets these requirements, the authorized officer will consider the following factors:

(i) The amount of coal reserves recoverable from the LMU, compared with the amount recoverable if each lease were developed individually;

(ii) The mining sequence;

(iii) The potential for independent development of each lease proposed to be included in the LMU;

(iv) The advantages of developing and operating the LMU as a unit;

(v) The potential for inclusion of the leases in question into another LMU;

(vi) The availability of transportation and access facilities; and

(vii) Other factors that the authorized officer finds relevant to achievement of maximum economic recovery in an efficient, economical, and orderly manner.

• • • • •

(7) The LMU does not include a lease that has not produced coal in commercial quantities by the end of the eighth year of its diligent development period, unless a portion of the LMU is covered by a SMCRA permit approved under 30 U.S.C. 1256 or by an administratively complete application for such a permit

(g) The authorized officer will state in writing the reasons for the decision on the LMU application

• • • • •

(h) • • •

(4) The authorized officer will not extend the LMU recoverable coal reserves exhaustion period because of the enlargement of an LMU or because of the modification of 3 resource recovery and protection plan

Dated: October 14, 1994

Bob Armstrong,

Assistant Secretary of the Interior

[FR Doc 94-31925 Filed 12-27-94 8 45 am]

BILLING CODE 4310-84-P

FEDERAL MARITIME COMMISSION

46 CFR Parts 514, 580 and 581

[Docket No. 93-22; Docket No. 94-26]

Coloading Practices by Non-Vessel-Operating Common Carriers; Shipper Affiliate Access to Service Contracts; Inquiry into Statutory Basis for Coloading Practices and Possible Section 16 Exemption for Coloading

AGENCY: Federal Maritime Commission.

ACTION: Notice of Inquiry; Extension of Time.

SUMMARY: The Commission by notice published November 9, 1994, initiated an inquiry in these proceedings to explore whether existing coloading practices are consistent with statutory

requirements, and, if not, whether an exemption proceeding should be initiated (59 FR 55826). Upon request of interested parties, the Commission has determined to enlarge the time for comment on the inquiry.

DATES: Comments due on or before January 23, 1995.

ADDRESSES: Send comments (original and 20 copies) to: Joseph C. Polking, Secretary, Federal Maritime Commission, 800 North Capitol St., N.W., Washington, D.C. 20573-0001, (202) 523-5725.

FOR FURTHER INFORMATION CONTACT: Robert D. Bourgoin, General Counsel, Federal Maritime Commission, 800 North Capitol St., N.W., Washington, D.C. 20573-0001, (202) 523-5740.

By the Commission.

Joseph C. Polking,
Secretary.

[FR Doc. 94-31859 Filed 12-27-94; 8:45 am]

BILLING CODE 6730-01-M

DEPARTMENT OF TRANSPORTATION

Maritime Administration

46 CFR Part 309

Rin 2133-AA89

War Risk Insurance Valuation

ACTION: Notice of rulemaking withdrawal.

SUMMARY: On May 7, 1991 the Maritime Administration (MARAD) issued an advance notice of proposed rulemaking (56 FR 21118) soliciting comments on proposed changes in MARAD's ship valuation methodology for issuing war risk insurance. After reviewing the comments received, including substantial comments from another Federal agency, MARAD determined that this rulemaking requires further consideration, and so stated in the Unified Agenda of Federal Regulations published on November 14, 1994 (59 FR 57997). In this regard, MARAD is considering requesting guidance from the Congress in legislation that will be proposed to extend the authority to issue war risk insurance, which expires on June 30, 1995. Accordingly, MARAD is withdrawing this rulemaking.

FOR FURTHER INFORMATION CONTACT: Edmond J. Fitzgerald, Director, Office of Subsidy and Insurance, Maritime Administration (MAR-570), 400 Seventh Street, SW., Washington, D.C. 20590, tel. (202) 366-2400.

Dated: December 21, 1994.

By Order of the Maritime Administrator.

Joel C. Richard,

Secretary, Maritime Administration.

[FR Doc. 94-31817 Filed 12-27-94; 8:45 am]

BILLING CODE 4910-81-M

FEDERAL COMMUNICATIONS COMMISSION

47 CFR Chapter 1

Regulatory Flexibility Act Plan for Periodic Review of the Commission's Rules and Regulations

AGENCY: Federal Communications Commission.

ACTION: Advance notice of proposed rule making.

SUMMARY: This action establishes a plan for the review of FCC regulations pursuant to the requirements of the Regulatory Flexibility Act of 1980 (94 Stat. 1164, Public Law 96-354, September 19, 1980) 5 U.S.C. § 610. The Appendix specifies the Commission's rules that will be reviewed during calendar year 1995. Any revision to this plan will be published in the Federal Register.

DATES: Comments on the rules chosen for review are due February 27, 1995.

ADDRESSES: Comments should be submitted to: Secretary, Federal Communications Commission, 1919 M Street, NW., Washington, DC 20554.

FOR FURTHER INFORMATION CONTACT: Terry Johnson, Office of Managing Director, (202) 418-0445.

SUPPLEMENTARY INFORMATION: Pursuant to the published plan, specific regulations which may require amendment or rescission will be published and provision will be made for comments by interested parties.

1. Pursuant to the Regulatory Flexibility Act of 1980, 5 U.S.C. § 610, the Commission hereby publishes this plan for the review of all rules issued by the agency in calendar year 1985 which have, or will have, a significant economic impact on a substantial number of small entities. The purpose of the review will be to determine whether such rules should be continued without change, or should be amended or rescinded, consistent with the stated objectives of applicable statutes, to minimize any significant economic impact of such rules upon a substantial number of small entities.

2. The accompanying Appendix lists the FCC regulations to be reviewed during calendar year 1995. In succeeding years, lists will be published for the review of regulations

promulgated ten years preceding the year of review.

3. In reviewing each rule under this plan to minimize significant economic impact on small entities consistent with the stated objectives of applicable statutes, the FCC will consider the following factors:

(1) The continued need for the rule;

(2) The nature of complaints or comments received concerning the rule from the public;

(3) The complexity of the rule;

(4) The extent to which the rule overlaps, duplicates or conflicts with other Federal rules, and, to the extent feasible, with State and local governmental rules; and

(5) The length of time since the rule has been evaluated or the degree to which technology, economic conditions, or other factors have changed in the area affected by the rule.

4. Appropriate information has been provided for each rule including a brief description of the rule and the need for and legal basis of the rule. Pursuant to the Regulatory Flexibility Act, the public is invited to comment on the rules chosen for review within 60 days from December 28, 1994. All relevant and timely comments will be considered by the Commission before final action is taken in this proceeding. To file formally in this proceeding, participants must file an original and four copies of all comments. If participants wish each Commissioner to have a personal copy of their comments, an original plus nine copies must be filed. Comments should be sent to the Office of the Secretary, Federal Communications Commission, Washington, DC 20554. Comments will be available for public inspection during regular business hours in the FCC Reference Center (room 239) of the Federal Communications Commission, 1919 M Street, NW., Washington, DC 20554.

5. It is ordered that, the Secretary shall send a copy of this notice to the Chief Counsel for Advocacy of the Small Business Administration pursuant to the Regulatory Flexibility Act. Pub. L. No. 96-354, Stat. 1164, 5 U.S.C. § 601 et seq. (1981).

FEDERAL MARITIME COMMISSION (FMC)

Proposed Rule Stage

4302. FINANCIAL RESPONSIBILITY REQUIREMENTS FOR NONPERFORMANCE OF TRANSPORTATION AWD INQUIRY INTO ALTERNATIVE FORMS (DOCKET NOS. 94-06 AND 94-21)

Priority: other Significant

Reinventing Government: This rulemaking is part of the Reinventing Government effort. It will revise text in the CFR to reduce burden or duplication, or streamline requirements.

Legal Authority: 5 USC 552 to 553; PL 89-777 (46 USC app 817e); 46 USC app 841a; 46 USC app 1716

CFR Citation: 46 CFR 540.5; 46 CFR 540.9

Legal Deadline: None

Abstract: The Commission is issuing another proposed rule in this matter. This action would amend financial responsibility requirements regarding

nonperformance by passenger vessel operators by eliminating the \$15 million unearned passenger revenue ceiling and revising the existing sliding scale for coverage. Comment also is sought on an alternative sliding scale available to passenger vessel operators with an acceptable financial rating, five years' operations in U.S. trades, and a satisfactory explanation of any claims' of nonperformance. Action also seeks comments with regard to self-insurers, as to requiring third-party coverage for a percentage of unearned passenger revenue and reestablishing a working capital requirement

Timetable:

Action	Date	FR Cite
NPRM	03/31/94	59 FR 15149
NPRM Comment Period End	05/02/94	
Comment Period Extended to	05/05/94	59 FR 23182
	06/10/94	

Action	Date	FR Cite
Comment Period Extended to	06/14/94	59 FR 30567
06/24/94		
Notice of Inquiry (Docket No. 94-21)	10/14/94	59 FR 52133
Clarification of Notice of Inquiry	11/02/94	59 FR 54878
Comment Period End for Notice of Inquiry	11/28/94	59 FR 52133
Second NPRM	05/00/96	
Second NPRM Comment Period End	07/00/96	

Small Entities Affected: None

Government Levels Affected: None

Agency Contact: Bryant L. VanBrakle, Director, Bureau of Tariffs, Certification and Licensing, Federal Maritime Commission, 809 North Capitol Street NW., Washington, DC 20573
Phone: 202 523-5796
Fax: 202 523-5830
RIN: 3072-AB80

FEDERAL MARITIME COMMISSION (FMC)

Final Rule Stage

4303. COLOADING PRACTICES AND POSSIBLE SECTION 16 EXEMPTION FOR COLOADING (DOCKET NOB. 93-22 AND 94-26)

Priority: Substantive, Nonsignificant

Legal Authority: 5 USC 552 and 553; 46 USC app 1707; 46 USC app 1716; PL 102-582, 106 stat 4910

CFR Citation: 46 CFR 514.15; 46 CFR 530.5; 46 CFR 581.1; 46 CFR 581.3

Legal Deadline: None

Abstract: Action redefines "coloadng" to limit the term to the combining of cargo under an agreement between non-vessel-operating common carriers (NVOCCs) and makes other changes involving coloadng, including prohibiting coloaded cargo from being carried under a service contract. This action has been held in abeyance pending a Notice of Inquiry which is considering whether current coloadng practices are consistent with statutory requirements, and if not, whether an exemption should be initiated.

Timetable:

Action	Date	FR Cite
NPRM	11/24/93	58 FR 63077
NPRM Comment Period End	03/11/94	59 FR 5974

Action	Date	FR Cite
Notice of Inquiry (Docket No. 94-26)	11/09/94	59 FR 55826
Comment Period End for NOI (Docket No. 94-26)	12/27/94	
NOI Comment Period Extended to	12/28/94	59 FR 66880
	01/23/95	
Final Action	07/00/96	
Final Action Effective	08/00/96	

Small Entities Affected: None

Government Levels Affected: None

Agency Contact: Robert D. Bourgoin, General Counsel, Federal Maritime Commission, 600 North Capitol Street NW., Washington, DC 20573
Phone: 202 523-5740
Fax: 202 523-5738
RIN: 3072-AB75

4204. AVAILABILITY OF THE ANNUAL FINANCIAL AND OPERATING STATEMENTS FILED BY DOMESTIC OFFSHORE CARRIERS (DOCKET NO. 95-15)

Priority: Substantive, Nonsignificant

Legal Authority: 5 USC 553; 46 USC app 817; 46 USC app 841(a); 46 USC app 844; 46 USC app 645

CFR Citation: 46 CFR 552

Legal Deadline: None

Abstract: Action would amend regulations governing financial reporting requirements applicable to vessel-operating common carriers by water in the domestic offshore trades to allow access to the annual statements of financial and operating data filed with the Commission by domestic offshore carriers.

Timetable:

Action	Date	FR Cite
NPRM	10/16/95	60 FR 53572
NPRM Comment Period End	11/15/95	
Final Action	08/00/96	
Final Action Effective	09/00/96	

Small Entities Affected: None

Government Levels Affected: None

Agency Contact: Anne M. McAloon, Bureau of Economic and Agreement Analysis, Federal Maritime Commission, 800 North Capitol Street NW., Washington, DC 20573
Phone: 202 523-5790
Fax: 202 523-3782

RIN: 3072-AB89

93-22

Monday
April 26, 1999

Federal Register

Part LVIII

Federal Maritime Commission

Semiannual Regulatory Agenda

FEDERAL MARITIME COMMISSION (FMC)

FEDERAL MARITIME COMMISSION

46 CFR Ch. IV

Unified Regulatory Agenda

AGENCY: Federal Maritime Commission.

ACTION: Semiannual regulatory agenda.

SUMMARY: Pursuant to section 4(b) of E.O. 12866 and the Regulatory Flexibility Act (5 U.S.C. 601 *et seq.*), the Commission anticipates having under consideration, during the period from April 1, 1999, to March 31, 2000, actions in the areas listed below.

FOR FURTHER INFORMATION CONTACT: For further information concerning

Commission rulemaking proceedings or the status of any matter listed below, contact: Bryant L. VanBrakle, Secretary, 800 North Capitol Street NW., Washington, DC 20573, (202) 523-5725.

SUPPLEMENTARY INFORMATION: Section 602 of the Regulatory Flexibility Act (5 U.S.C. 602) requires the publication of an agenda of items for which regulatory agencies may propose or promulgate a rule which is likely to have a significant economic impact on a substantial number of small entities. Section 4(b) of Executive Order 12866 also requires agencies to publish a regulatory agenda. The agendas include information on regulatory activities being conducted or

reviewed during the succeeding 12 months by the Commission.

The following is the Commission's unified regulatory agenda. The agenda does not necessarily include all petitions for rulemakings which are under staff review.

In addition, the Commission maintains a compilation of the status of pending rulemaking proceedings and a listing of rules that have become final since the publication of the most recent regulatory agenda. This will be made available to the public, including the press and interested persons. Bryant L. **VanBrakle**, Secretary

Final Rule Stage

Sequence Number	Title	Regulation Identifier Number
4281	Licensing, Financial Responsibility Requirements , and General Duties for Ocean Transportation Intermediaries (Docket No. 98-28)	3072-AC06
4282	Carrier Automated Tariff Systems (Docket No 98-29)	3072-AC07
4283	Service Contracts Subject to the Shipping Act of 1984 (Docket No. 98-30)	3072-AC08

Long-Term Actions

Sequence Number	Title	Regulation Identifier Number
4284	Coloading Practices and Possible Section 16 Exemption for Coloading (Docket Nos 93-22 and 94-26)	3072-A075
4285	Financial Responsibility Requirements for Nonperformance of Transportation and Inquiry Into Alternative Forms (Docket No. 94-06; Further Notice of Proposed Rulemaking)	3072-AB80
4286	Port Restrictions and Requirements in the United States/Japan Trade (Docket No 96-20)	3072-AB97

Completed Actions

Sequence Number	Title	Regulation Identifier Number
4287	Inquiry Into Automated Tariff Filing Systems as Proposed by the Pending Ocean Shipping Reform Act of 1998 (Docket No. 98-10)	3072-AC00
4288	Miscellaneous Amendments to Rules of Practice and Procedure (Docket No 98-21)	3072-AC02
4289	Amendments to Regulations Governing Restrictive Foreign Shipping Practices and New Regulations Governing Controlled Carriers (Docket No. 98-25)	3072-AC03
4290	Ocean Common Carrier and Marine Terminal Operator Agreements Subject to the Shipping Act of 1984 (Docket No 98-26)	3072-AC04
4291	Marine Terminal Operator Schedules (Docket No 98-27)	3072-AC05

FEDERAL MARITIME COMMISSION (FMC)

Long-Term Actions

4284. COLOADING PRACTICES AND POSSIBLE SECTION 16 EXEMPTION FOR 'COLOADING (DOCKET NOS. 93-22 AND 94-26)

Priority: Substantive, Nonsignificant

CFR Citation: 46 CFR 514.15; 46 CFR 580.5; 46 CFR 581.1; 46 CFR 581.3

Timetable:

Action	Date	FR Cite
NPRM	1 1/24/93	58 FR 62077
NPRM Comment Period End	03/11/94	59 FR 5974
Notice of Inquiry (Docket No 94-26)	1 1/09/94	59 FR 55826
Comment Period End for NOI (Docket No 94-26)	12/27/94	
NOI Comment Period Extended to 01/23/95	12/28/94	59 FR 66880
Final Action	To Be Determined	
Final Action Effective	To Be Determined	

Regulatory Flexibility Analysis Required: No

Small Entities Affected: Businesses

Government Levels Affected: None

Agency Contact: Thomas Panebianco
Phone: 202 523-5740

Fax: 202 523-5738

Email: thomas_p@fmc.gov

RIN: 3072-AB75

4285. FINANCIAL RESPONSIBILITY REQUIREMENTS FOR NONPERFORMANCE OF TRANSPORTATION AND INQUIRY INTO ALTERNATIVE FORMS (DOCKET NO. 94-06; FURTHER NOTICE OF PROPOSED RULEMAKING)

Priority: Other Significant

Reinventing Government: This rulemaking is part of the Reinventing Government effort. It will revise text in the CFR to reduce burden or

duplication, or streamline requirements.

CFR Citation: 46 CFR 540.5; 46 CFR 540.9

Timetable:

Action	Date	FR Cite
NPRM	03/31/94	59 FR 15149
NPRM Comment Period End	05/02/94	
Comment Period Extended to	06/10/94	59 FR 23182
Comment Period Extended to	06/24/94	59 FR 30567
Notice of Inquiry (Docket No 94-21)	10/14/94	59 FR 52133
Clarification of Notice of Inquiry	11/02/94	59 FR 54878
Comment Period End for Notice of Inquiry	11/28/94	59 FR 52133
Further NPRM (Docket No. 94-06)	06/26/96	61 FR 33059
Discontinuance of Proceeding for Docket No. 94-21	07/03/96	61 FR 39940
Further NPRM Comment Period End	08/26/96	61 FR 33059
Comment Period Extended to	09/25/96	61 FR 43209
Comment Period Extended to	10/15/96	61 FR 50265
Final Action	To Be Determined	
Final Action Effective	To Be Determined	

Regulatory Flexibility Analysis Required: No

Small Entities Affected: Businesses

Government Levels Affected: None

Agency Contact: Austin L. Schmitt

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RIN: 3072-AB80

4286. PORT RESTRICTIONS AND REQUIREMENTS IN THE UNITED STATES/JAPAN TRADE (DOCKET NO; 96-20)

Priority: Other Significant

CFR Citation: 46 CFR 586

Timetable:

Action	Date	FR cite
NPRM	11/13/96	61 FR 58160
Comment Period Extended to 01/20/97	12/27/96	61 FR 68200
NPRM Comment Period End	01/13/97	
Final Rule	03/04/97	82 FR 9696
Final Rule Effective	04/14/97	
Amendment to Final Rule	04/16/97	62 FR 18532
Final Rule Effectiveness Extended to 09/04/97	04/16/97	62 FR 16533
Status Reports and Comments Due 07/01/97	04/16/97	62 FR 18533
Status Reports and Comments Due 08/05/97	04/16/97	62 FR 18433
Amendment to Final Rule - Denial of Petition	1 0/20/97	62 FR 54396
Final Rule Effectiveness Suspended 11/13/97	11/19/97	62 FR 61648
Final Action	To Be Determined	
Final Action Effective	To Be Determined	

Regulatory Flexibility Analysis Required: No

Small Entities Affected: Businesses

Government Levels Affected: None

Agency Contact: Thomas Panebianco

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RIN: 3072-AB97

FEDERAL MARITIME COMMISSION (FMC)

Completed Actions

4287. INQUIRY INTO AUTOMATED TARIFF FILING SYSTEMS AS PROPOSED BY THE PENDING OCEAN SHIPPING REFORM ACT OF 1998 (DOCKET NO. 9810)

Priority: Other Significant

Legal Authority: 46 USC app 1701 et seq

CFR Citation: 46 CFR 514

Legal Deadline: None

Abstract: The purposes of the inquiry are to determine an approach that will produce private automated tariff publication systems that best comport with the directives of S.414, the Ocean Shipping Reform Act of 1998, and its legislative history and to determine whether ocean common carriers should

be required to file service contracts electronically. Comments are solicited on the possible requirements for such tariff filing systems and on the electronic filing of service contracts and publication of essential terms.